Labelling checklist under Article 50 of the AI Act

Legal basis: Article 50 of Regulation (EU) 2024/1689 (AI Act), applicable since 2 August 2026 (Art. 113). This sheet classifies; it does not determine whether a rule applies and names no penalty. Points 1 to 3 apply once per business with a review date; points 4 to 9 per system or per publication. The wording was read at the consolidated text of 27 July 2026 (EUR-Lex, retrieved 23 October 2026); check for later amendments at each review.

Business	Example Electrical Ltd
Responsible for labelling (§ 7 of the policy)	Owner or managing director
Date	23 October 2026

1 · Role clarification (standing)

Source: Regulation (EU) 2024/1689, Art. 3 (3) and (4), Art. 25 and Annex III, consolidated version of 27 July 2026, EUR-Lex, retrieved 23 October 2026.

- ☐ Recorded for each tool in the register: provider (name, product). The business is the deployer because it uses the system under its authority (Art. 3 (4)); employees acting on instruction are not deployers themselves. Tools in the register: Text assistant (chat), Translation service, Assistant inside office software.
- ☐ Decides on use in the business: Owner or managing director.
- ☐ No tool is offered to others under the business's own name, and no tool is used for a purpose listed as high-risk (Annex III). If either applies, the business may become a provider (Art. 3 (3), Art. 25); ask a specialist.

2 · Inventory of uses (standing)

Source: Regulation (EU) 2024/1689, Art. 50 (1), (3) and (4), consolidated version of 27 July 2026, EUR-Lex, retrieved 23 October 2026.

An AI system talks directly to customers or other people (chat, voice, avatar): Art. 50 (1)	no
The business creates or alters images, audio or video with AI that get published: Art. 50 (4) first subparagraph	yes
The business publishes AI-generated or AI-altered text: Art. 50 (4) second subparagraph	yes
The business uses emotion recognition or biometric categorisation: Art. 50 (3)	no

3 · Provider evidence (standing, per tool)

Source: Regulation (EU) 2024/1689, Art. 50 (1) and (2); Art. 111 (4), inserted by Regulation (EU) 2026/1744, consolidated version of 27 July 2026, EUR-Lex; Commission guidelines C(2026) 5054, point 153, retrieved 23 October 2026.

Tool	Notice of interaction with AI (para. 1): source, date	Machine-readable marking of outputs (para. 2): source, date	Checked on
Text assistant (chat)			
Translation service			
Assistant inside office software			

Paragraphs 1 and 2 address the provider; the business records what the provider says and claims nothing itself. For generative systems placed on the market before 2 August 2026 the provider has until 2 December 2026 for paragraph 2; the notice under paragraph 1 applies since 2 August 2026. Until 2 December 2026 enter "no statement" in the column for paragraph 2 where the provider says nothing, and set a review date after 2 December 2026.

5 · Deepfake check (per image, audio or video)

Source: Regulation (EU) 2024/1689, Art. 3 (60); Art. 50 (4) first subparagraph and (5), consolidated version of 27 July 2026, EUR-Lex; Commission guidelines C(2026) 5054, points 113 and 119 to 123, retrieved 23 October 2026.

Content (name, place of publication) _____

☐ Does the content resemble real or plausibly real persons, objects, places, entities or events (invented but realistic people or scenes count), and could a person take it for genuine? Deep fake: yes / no

One sentence of reasoning _____

☐ If yes: disclosure that the content was artificially generated or manipulated, visible or audible, with placement and date

How, where, when _____

☐ Evidently artistic, creative, satirical or fictional work: the duty is reduced, not removed; the AI origin is still disclosed in a way that does not hamper the work. Interpretation: advertising rarely qualifies; case by case.

Reasoning (or "not claimed") _____

Copy this block for each image, audio, video or text; in the DOCX the block is ready to copy.

6 · Text check (per publication)

Source: Regulation (EU) 2024/1689, Art. 50 (4) second subparagraph, consolidated version of 27 July 2026, EUR-Lex; Commission guidelines C(2026) 5054, point 131, retrieved 23 October 2026.

Text (title, place of publication) _____

Generated on _____

Published on _____

- [ ] Publicly accessible (website, blog, social media, open mailing list)? yes / no
- [ ] Does the text inform the public on matters of public interest (indications: law, health, safety, environment, subsidies; not: advertising and product texts without claims on health, consumer safety or sustainability; product texts with such claims, for example on electrical safety, count as covered; mixed texts in doubt as covered)? yes / no
- [ ] Both yes: either disclosure

Wording, place _____

- [ ] or exception: human review or editorial control; no change by AI after the review; editorial responsibility held by a named person or the business

Reviewed by (name, kind of review, date) _____

Editorial responsibility (person or business; where publicly named, e.g. legal notice) _____

Copy this block for each image, audio, video or text; in the DOCX the block is ready to copy.

7 · Timing and form (per case)

Source: Regulation (EU) 2024/1689, Art. 50 (5), consolidated version of 27 July 2026, EUR-Lex, retrieved 23 October 2026.

- [ ] The information is provided at the latest at the time of the first interaction or exposure, in a clear and distinguishable manner.
- [ ] It meets the applicable accessibility requirements

How checked (to be verified) _____

8 · Key dates (per content)

Source: Regulation (EU) 2024/1689, Art. 5 (1), first subparagraph, points (ba) and (bb); Art. 113, consolidated version of 27 July 2026, EUR-Lex; Commission guidelines C(2026) 5054, point 154, retrieved 23 October 2026.

- [ ] Article 50 applies since 2 August 2026. There is no transition period for the business as deployer.
- [ ] According to the guidelines, content generated before 2 August 2026 need not be labelled retroactively; text generated before but published on or after that date must be labelled: check against the original.

Content generated on _____

Published on _____

- [ ] From 2 December 2026 it is also prohibited to use an AI system that generates or manipulates realistic images, videos, audio or similar material of an identifiable natural person's intimate parts, or of an identifiable natural person engaged in sexually explicit activities, without that person's freely given, specific, informed, unambiguous and explicit consent (Art. 5(1)(ba)); the same applies to AI systems that generate child sexual abuse material (point (bb)).

9 · Delimitation

Source: Regulation (EU) 2024/1689, Art. 50 (6), consolidated version of 27 July 2026, EUR-Lex; Commission guidelines C(2026) 5054, points 127 to 129, retrieved 23 October 2026.

- [ ] Paragraphs 1 to 4 leave Chapter III and other transparency obligations for deployers in Union or national law unaffected (Art. 50 (6)). The guidelines add that a label does not make a deep fake lawful: data protection law, trademark and copyright law, personality rights and the rules against misleading advertising continue to apply.
- [ ] Austria: no market surveillance authority designated as of 23 October 2026 (handbook 7.1).

Check again on _____

Review: on every new publication and once a year, and when a tool is added or a provider changes its terms.

_____

Date, signature of the person responsible for labelling